

1.2.1 Powers and duties of officers (administrative, financial and judicial)

1.2.1	Powers and duties of officers (administrative, financial and judicial) As per Statute 16 of the Statutes of the Indian Information Technology, Pune 2017, the powers & duties of Director are as under • Power of the Director a. 1. The Director shall be the appointing authority of - ○ Chief Warden, Wardens and Assistant Wardens of the Hostels and faculty associated facilities. ○ Heads of Departments or Schools or Centers of academic and administrative units. ○ Provided that the appointment of Dean and Associate Dean shall be approved by the Chairperson. ○ Deans and Associate Deans, the selection process, positions and functions of which shall be as decided by the Board: 2. Subject to the budget provisions made for the specific purpose, the Director may incur expenditure in accordance with the procedure as may be laid down by the Board from time to time. 3. The Director may re-appropriate funds with respect to different items constituting the recurring budget up to such limit for each item as may be determined by the Board from time to time: Provided that such re-appropriation shall not involve any liability in subsequent years and every such re-appropriation shall, as soon as possible, be reported to the Board. 4. The Director may waive recovery of overpayment up to such limit as may be determined by the Board from time to time, made to an employee, not detected within twenty four months of payment and every such waiver shall, as soon as possible, be reported to the Board. 5. The Director may write off irrecoverable losses and irrecoverable value of stores lost or rendered unserviceable due to fire, wear and tear on the recommendation of a Standing Committee appointed by the Board for such purpose subject to such financial limit, as may be specified by the Board from time to time.
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6. The Director may employ technicians and workmen paid out of contingencies involving such emoluments as may be stipulated by the Board from time to time.
7. The Director may send the employees for training or for a course of instruction subject to such terms and conditions as may be laid down by the Board from time to time.
8. The Director may sanction remission or reduction of rent for buildings rendered wholly or partially unsuitable.
9. The Director may sanction the temporary allocation of any building for any purpose other than that for which it was constructed.
10. In exceptional cases, subject to availability of funds, the Director may create temporary posts with the approval of the Chairperson, of not more than two years' duration on consolidated pay and under report to the Board.
11. The Director may exercise the powers of a Head of Department for the purposes of the Account Code, the Fundamental and Supplementary Rules and other rules of the Government in so far as they are applicable or may be made applicable to the conduct of the business of the Institute.
12. If for any reason, the Registrar is temporarily absent for a period not exceeding one month, the Director may take over, or assign to any employee of the Institute, any of the functions of the Registrar as he or she deems fit:

Provided that if, at any time, the temporary absence of the Registrar exceeds one month, the Board may, if it thinks fit, authorise the Director to take over or assign the function of the Registrar as aforesaid, for a period exceeding one month.

13. All contracts for and on behalf of the Institute except the one between the Institute and the Director shall when authorized by a resolution of the Board passed in that behalf, be in writing and be made in the name of the Institute and every such contract shall be executed on behalf of the Institute by the Registrar.
14. The Director may, at his discretion, form such Committees as he or she may consider appropriate.
15. In the event of the occurrence of any vacancy in the office of the Chairperson by reason of his or her death, resignation, or otherwise or in the event of the Chairperson being unable to discharge his or her functions owing to absence, illness or any other cause, the Director may discharge the functions assigned to the Chairperson.

- **Power of the Registrar**

The Registrar is responsible for all administrative matters subject to general control of the director.

- **Power of the Faculty**

The HOD & the faculty responsible for the entire working of the Academic unit subject to general control of the director.

Duties

Integrity: - All employees shall maintain integrity and shall not adopt any unethical or unlawful practice

- **All employees of the Institute shall.**

- i. Strive to develop knowledge and understanding of their area of expertise or professional field.
- ii. Exercise their best professional and ethical judgment and carry out their duties and functions with integrity and objectivity.
- iii. Act promptly, diligently and conscientiously.
- iv. Act fairly and reasonably, and treat students, employees, affiliates, visitors to the Institute and members of the public with respect, impartiality, courtesy and sensitivity.
- v. Maintain a co-operative and collaborative approach to working relationships and protect the Institute's intellectual property arising from teaching and research.
- vi. All employees shall be present in the Institute as per the prescribed office hours unless they have been assigned duty outside Institute or are on officially sanctioned leave.
- vii. If an employee's professional activities outside the Institute prevent him or her from physical presence in the Institute and cause a conflict of commitment, the same shall be discussed with the Head of the Department or Director.
- viii. Any employee who is in charge of a work place shall take appropriate steps to prevent sexual Any employee found indulging in any act of sexual harassment at work-place, shall be liable for disciplinary action as per the rules of the Institute.
- ix. No employee shall accept or permit any member of his family or any other person acting on his or her behalf to accept, any gift.

- **Public comment:** - An employee who makes public comment or representations and in doing so identify himself as employees of the Institute shall do so according to the following guidelines, namely: -

- i. The Institute encourages its employees to disseminate results of research or scholarship undertaken in the Institute on an open and timely basis to the broader scholarly community.
- ii. The Institute encourages its employees to participate in public debate and be available to the media for comment in their field of expertise.
- iii. Employees shall maintain the highest professional and ethical standards when they associate themselves with the Institute in public statements, and an employee shall ensure that no public statement made by him shall bring the Institute into disrepute.
- iv. Employees contributing to public commentary shall identify themselves using their title, and qualifications when they are writing or speaking publicly on a matter within their academic or professional field of expertise or specialization.
- v. All statements made by employees in the capacity as experts in their fields of expertise or specialization shall be accurate, professional and exercise appropriate restraint.
- vi. When commenting in public, employees are expected to act in good faith and shall not misrepresent their expertise.
- vii. Only those employees officially appointed on behalf of the Director to represent the Institute shall comment publicly for the Institute on policies of the Institute, and all administrative issues.
- viii. While publicly communicating on any matter, employees shall be mindful that they show respect for the opinions of others, do not injure a person's reputation or create a basis for defamation action and in such cases, the Institute shall not be responsible for any claims for defamation or otherwise which may be instituted for such comment.
- ix. An employee shall obtain prior permission from competent authority in case he is called upon to give evidence in connection with any enquiry conducted by any person, authority or committee: Provided that no permission shall be required to give evidence before internal committees of the Institute or in case of judicial enquiries.

- **Conflicts of interest:** - All employees shall make full disclosure to the Institute of all relevant facts and circumstances giving rise to an actual, potential or perceived conflict of interest and comply with the following guidelines: -

- i. Employees shall ensure that scholarly activities within the Institute and open and timely dissemination of results of scholarly activities are not in actual, potential or perceived conflict with their external, personal or financial interests.

- ii. All stakeholders shall be adequately informed about external, personal or financial obligations that may delay or prevent free dissemination of the results of scholarly activities.
- iii. Professional activities outside the Institute shall not detract an employee from his duties within the Institute.
- iv. Employees who are involved or become aware in a conflict of interest shall immediately declare it to the institute through the Director.
- v. The Institute shall have a comprehensive plan for managing the conflict of interest prepared and share it with the concerned employee.
- vi. All employees, before entering into any Memorandum of Understanding with an outside company or organization shall have to discuss the terms and conditions in the agreement with competent authorities in order to ascertain acceptability of the same to the Institute.
- vii. An employee of the Institute shall dissociate himself from any action that he or she is performing individually or as a member of a group either as part of one's duties or as a consequence of some responsibility entrusted to him by a competent authority if it involves conflict of interest.
- viii. An employee shall be duly rewarded through honoraria, consulting fees and royalties for these activities specified above:

Provided that, no decisions taken by an employee in day to day discharge of responsibilities in the Institute shall be influenced by considerations of personal financial gains;

- i. The Board shall formulate a comprehensive policy for conflict of interest and the situation shall arise when the outcome of any action that a person is responsible for involving favorable or unfavorable consequences for self or any person who is a member of the family or is closely related (e.g., supervisor of a student).
- **Financial interests outside the Institute:-** (1) An employee shall disclose personal financial interests and those of the members of his family when he has one or more financial interests, including payment for services or teaching, income from consulting fees, honoraria, royalties from intellectual properties not owned by the Institute, especially in cases where they are dealing with any company or organization unless such company or organization-
 - i. Funds research programs or projects at the Institute in which the employee is involved;
 - ii. Licenses intellectual property in which the employee has a financial interest; Sponsors the employee's participation as a speaker in continuing or on-line education programs;

	iv. Enters into a Memorandum of Understanding with the Institute to which the employee is a signatory; v. Makes a product that is under study in which the employee is involved, or vi. Has interests that can have a potential influence on the employee's scholarship or research. vii. Has been incubated by the institute. • Assessment of conflicts of interest of employees shall be conducted by the competent authority. • Intellectual Property.- All employees of the Institute shall abide by the policy on Intellectual property. • Political Activity. - Every employee of the institute shall be governed by the rules of the Government of India as applicable to the Central Government employees relating to political activities. • Information to institute.- i. An employee or student of the Institute shall inform the Institute of any circumstance such as but not restricted to criminal charges or proceedings, chronic insolvency or indebtedness, etc., that may hamper him in the performance of his duties or responsibilities. ii. Every employee of the Institute shall declare his movable and immovable assets that are owned by him or her or by members of the family, as per the norms applicable to the employees of the Central Government.
	As per Sec. 249(2) of the IIIT(PPP) Act, 2017, the Registrar has to exercise such powers and perform such duties as may be assigned to him by the Statutes or by the Director.